

January 29, 2026

Office of Governor Henry McMaster
1100 Gervais Street
Columbia, South Carolina 29201

RE: VETO South Carolina H. 3431

Dear Governor McMaster:

On behalf of the advertising industry, we respectfully ask that you **VETO H. 3431**.¹ We and the companies we represent, many of whom do substantial business in South Carolina, strongly believe minors deserve meaningful privacy protections supported by reasonable government policies and responsible industry practices. H. 3431, however, raises significant First Amendment concerns for South Carolina minors and businesses alike, similar to concerns raised by a comparable law in Texas.² The bill would directly harm South Carolina minors by restricting their access to content and information, leaving them at a clear disadvantage compared to their peers in other states. We therefore ask you to **VETO H. 3431**.

- **H. 3431 imposes unconstitutional restraints on access to information by South Carolina minors.** H. 3431 would categorically prohibit covered online services from “facilitating” targeted advertising to minors. That ban infringes minors’ First Amendment right to receive lawful, truthful information. The Supreme Court has long recognized that the First Amendment protects not only the right to speak, but also the right to receive information, including advertising. Further, H. 3431 fails to identify a legitimate governmental interest that would justify conscripting online platforms to suppress lawful advertising to minors. Nor could such a sweeping prohibition be narrowly tailored to advance any reasonable state objective.³ As passed by the South Carolina Legislature, H. 3431 imposes an unconstitutional restriction on protected speech without adequate justification or tailoring.
- **H. 3431 imposes unconstitutional restraints on the lawful commercial speech of businesses and nonprofits.** H. 3431’s explicit prohibition on covered online services “facilitating” targeted advertising to minors would also directly infringe the First Amendment rights of businesses and mission-driven nonprofits to convey lawful messages to the constituencies they aim to reach. Courts have repeatedly affirmed that commercial speech is entitled to First Amendment protection, recognizing the strong interests of consumers, speakers, and society in the free flow of lawful commercial information.⁴ H. 3431 would prevent South Carolina businesses and nonprofits, including churches, humanitarian and emergency assistance organizations, housing organizations, educational and trade programs, military recruiters, and charitable organizations from effectively

¹ South Carolina H. 3431 (2025–2026 Reg. Sess.), located [here](#) (hereinafter, “H. 3431”).

² Wendy Davis, MEDIAPOST, *Judge Blocks Texas Restriction on Targeted Ads to Teens* (Feb. 7, 2025), located [here](#).

³ *Central Hudson Gas & Elec. Corp. v. Public Service Commission of New York*, 447 U.S. 557, 564-66 (1980).

⁴ See, e.g., *Va. Pharmacy Bd. v. Va. Consumer Council*, 425 U.S. 748, 756-57 (1976); *Sorrell et. al. v. IMS Health Inc.*, 564 U.S. 552, 570-71 (2011).

reaching South Carolina teenagers with important messages on the very platforms those teenagers frequently use.

- **H. 3431 would limit South Carolina minors’ ability to access important information online.** H. 3431 would significantly restrict the information South Carolina minors can access online, treating a 7-year-old the same as a 17-year-old and imposing a blunt, one-size-fits-all approach that ignores differences in age, maturity, and Internet use. By banning targeted advertising, the bill cuts off South Carolina minors’ access to information about higher education, careers, military service, housing, and employment. The bill would impede older minors’ educational, personal, and professional development and limit teens’ participation in the digital economy, harming both young people and South Carolina businesses. Moreover, a federal court in Texas struck down a similar law last year on First Amendment grounds, finding no compelling state interest in restricting targeted advertising to minors and noting that such advertising can benefit teens by connecting them to scholarships, learning, and other opportunities.⁵ Because H. 3431 is even more restrictive than that Texas law, prohibiting covered online services from “facilitating” targeted advertising to minors without any parental-consent exception, it is unlikely to withstand legal scrutiny.

We strongly urge you to **VETO H. 3431**.

* * *

Thank you in advance for your consideration of this request.

Sincerely,

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⁵ *Students Engaged in Advancing Texas v. Paxton*, 2025 WL 455463 (W.D. Tex. Feb. 7, 2025) (located [here](#)).